

I. GENERAL TERMS AND CONDITIONS

(Customer / Sales GTC)

Name of Contractor	Debaru Kft.
Registered office	1117 Budapest, Budafoki út 97.
Tax number / EU VAT number	14277148-2-43 / HU14277148
Company registration number	01 09 896759

Effective from 28 May 2026 until withdrawn or amended.

This document contains the general terms and conditions applicable to the services provided by the Contractor to Customers. The purpose of this document is to establish uniform, transparent and foreseeable contractual rules for electrical, control engineering, automation, equipment manufacturing, software development and on-site installation projects.

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1. INTRODUCTORY PROVISIONS

1.1. Details of the Service Provider/Contractor:

Name: Debaru Kft. (hereinafter: Contractor);
Registered office: 1117 Budapest, Budafoki út 97.;
Tax number: 14277148-2-43;
EU VAT number: HU14277148;
Company registration number: 01 09 896759.

1.2. These General Terms and Conditions (hereinafter: GTC) apply to the services and deliveries provided by the Contractor to Customers, in particular to electrical and control engineering design, distribution and control cabinet manufacturing, equipment manufacturing, implementation related to cleanroom systems, PLC, HMI, SCADA and other software development, on-site electrical installation, installation, commissioning, troubleshooting, maintenance, training and support.

1.3. These GTC form an inseparable part of all offers, order confirmations and individual contracts of the Contractor, unless the Parties expressly agree otherwise in writing.

1.4. The purpose of these GTC is to standardize business transactions between the Parties, regulate contractual risks in advance, make the rules of performance, handover and acceptance, payment, liability and change management transparent, and reduce the risk of disputes and administrative burdens arising during projects.

1.5. These GTC have primarily been prepared for B2B legal relationships of a business, contracting and industrial nature. The Contractor typically provides its services to Customers engaged in professional, industrial, institutional or economic activities.

2. DEFINITIONS

- 2.1. Customer: any legal entity, organization without legal personality, sole entrepreneur or other business organization that requests an offer from the Contractor, places an order, concludes a contract or uses the Contractor's performance.
- 2.2. Individual Contract: a written contract, order confirmation, accepted offer or other document concluded between the Parties that contains the technical, financial, deadline-related and other conditions of the specific project.
- 2.3. Documentation to be handed over: documentation expressly to be handed over by the Contractor under the Contract and necessary for the certification, operation or maintenance of the performance, in particular approved plans, circuit diagrams, I/O lists, functional descriptions, test reports, handover and acceptance records, operating or maintenance instructions, provided that their preparation is expressly included in the offer or in the Individual Contract.
- 2.4. Native or editable file: any document, plan, program, configuration file, project file or data file that can be edited in the design, development, programming or configuration environment used by the Contractor, including in particular but not exclusively: DWG, DXF, EPLAN, AutoCAD, Word, Excel, TIA Portal, WAGO, SAIA, Siemens, PLC, HMI, SCADA, gateway, data collection, configuration, source code, project or library files.
- 2.5. Source code and developer file: program code, PLC program, HMI program, SCADA project, software module, library, function block, script, database structure, configuration logic, internal developer documentation, version control file and any file or document containing know-how that is suitable for becoming acquainted with the Contractor's professional solutions, internal development methods or business secrets.
- 2.6. Additional work: any work, modification, design, manufacturing, programming, assembly, commissioning, documentation or support task not included in the Contract or in the accepted offer, which is subsequently ordered or becomes necessary and arises in addition to the approved technical scope.
- 2.7. Extra work: any work that is necessary for the performance of the contractual technical scope, but the necessity of which could not have been foreseen with due care at the time of contracting, or which becomes necessary due to data provided by the Customer, on-site conditions, technological conditions, a third-party system or supplier or manufacturer changes.
- 2.8. Reason arising within the Customer's sphere of interest: any circumstance, delay, deficiency, decision, omission, data provision error, deficiency in work area preparation, access problem, approval delay, lack of authority or operator permit, obstacle caused by a third party or defect in equipment, system, infrastructure, data, plan or technology provided by the Customer that does not fall within the Contractor's sphere of control.

3. APPLICATION OF THE GTC, OFFER AND CONCLUSION OF THE CONTRACT

3.1. The Contractor's offer - in the absence of a different written statement - shall be valid for 30 calendar days from the date of issue. After the expiry of the offer validity period, the Contractor is entitled to amend or withdraw the offer or make it subject to new conditions.

3.2. The Contract is concluded by the Customer's written order and its written confirmation by the Contractor, signed in a company-like manner or given by an authorized person. Statements made by e-mail, electronic signature, procurement system or other verifiable electronic means shall also qualify as written form, provided that their content can be clearly identified.

3.3. The general terms and conditions, procurement terms, order terms, portal terms or other contractual documents used by the Customer shall become part of the Contract only if the Contractor has expressly accepted them in writing.

3.4. A reference to the Customer's general terms and conditions, their attachment to the order, their display on a procurement portal or their sending in an automatic system message shall not in itself constitute acceptance thereof by the Contractor.

3.5. If the Customer's order, confirmation, procurement terms or other document contains a provision contrary to these GTC, the conflicting provision shall apply only if the Contractor has expressly accepted it in writing.

4. TECHNICAL SCOPE AND SCOPE OF THE OFFER

4.1. The Contractor's offer covers exclusively the works, services, materials, equipment, documents, software, deadlines and other obligations expressly and item by item specified therein.

4.2. Any task, service, document, licensing procedure, language translation, authority cooperation, provision of on-site conditions, crane work, lifting, scaffolding, loading, transport, packaging, customs clearance, foreign administration, training, remote supervision, maintenance or support that is not expressly included in the offer or the Individual Contract shall not form part of the Contractor's performance.

4.3. The prices and deadlines included in the offer are based on the data, technical information, documents handed over by the Customer, on-site assumptions, technological descriptions and supplier information available to the Contractor at the time of contracting.

4.4. If such data prove to be incomplete, inaccurate, incorrect, outdated or subsequently modified, any resulting additional cost, deadline extension, additional work or extra work shall be borne by the Customer.

4.5. The Contractor is not obliged to perform any work that is not included in the accepted offer, the Contract or the written approved technical scope. The Contractor is entitled to make the performance of such works subject to a separate written order, additional work agreement, advance payment or amended performance deadline.

5. PERFORMANCE PHASES AND MILESTONES OF THE CONTRACT

5.1. The Contractor carries out complex projects in a milestone-based quality assurance and performance tracking system. The progress of the project - unless otherwise agreed - is linked to the written closing, approval or ready-for-completion notification of the individual phases.

5.2. G2 Milestone - Contract conclusion and project launch: the project starts upon acceptance of the Contractor's offer by the Customer and written confirmation by the Contractor. Project launch may be subject to payment of an advance, provision of data, access or fulfillment of other contractual conditions.

5.3. G3 Milestone - Closing of the design phase / Design Freeze: based on the technical scope set out in the offer, the Contractor prepares and sends the execution, electrical, software or other plans for approval. The Customer is obliged to approve the plans in writing or return them with specific professional comments within 5 working days at the latest. Failure to meet the deadline shall be deemed acceptance of the plans.

5.4. Upon closing of the G3 milestone, the technical scope is fixed. Thereafter, any technical, functional, quantity, documentation or deadline-related modification shall qualify as a change request.

5.5. G4 Milestone - Release for manufacturing and procurement / Build Release: after the successful closing of the G3 milestone, the Contractor begins final procurement of the necessary materials and parts, physical manufacturing of the control cabinets, software configuration or other manufacturing and preparation tasks. Any delay by the Customer in the G3 phase automatically extends the performance deadline.

5.6. G5 Milestone - Factory Acceptance / FAT: factory acceptance test performed at the Contractor's premises, workshop or other designated location, the purpose of which is to inspect the equipment, software or system according to the technical scope.

5.7. G6 Milestone - Site Acceptance / SAT: inspection performed at the final installation or commissioning site, the purpose of which is to verify operation according to the approved functional description.

5.8. G8 Milestone - Closing of warranty period / Final Acceptance: on the last day of the warranty period, the Parties shall consider the project finally closed. If the Customer does not report a written, verified and open warranty defect within 15 calendar days prior to the expiry of the warranty period, any performance or warranty security retained by the Customer shall automatically become due and the Customer shall pay it within 8 days.

6. DESIGN, DESIGN APPROVAL AND HANDOVER OF DOCUMENTATION

6.1. The Contractor shall hand over plans, technical documentation, circuit diagrams, layout plans, I/O lists, cable lists, functional descriptions and other documents - unless otherwise agreed in writing - exclusively in PDF format.

6.2. The Contractor is not obliged to hand over editable or native files. Accordingly, the handover of DWG, DXF, EPLAN, AutoCAD, Word, Excel, TIA Portal, WAGO, SAIA, Siemens, PLC, HMI, SCADA, gateway, data collection, configuration, source code, project or library files shall in particular not form part of the performance, unless the Parties have agreed on this in advance, expressly, in writing and for separate remuneration.

6.3. The Customer may use the plans and documentation handed over to it exclusively for the project under the given Contract, for its operation, maintenance or authority/operator certification. The transfer of the documentation to a third party, its modification, use in another project, further design or commercial exploitation is permitted only with the Contractor's prior written consent.

6.4. The design activity qualifies as an independently assessable partial performance. The Contractor is entitled to invoice the design fee in whole or in part even if manufacturing, implementation, installation or commissioning is not realized due to the Customer's decision, delay, lack of cooperation, project suspension or other reason arising within the Customer's sphere of interest.

6.5. The Customer is obliged to approve in writing or return with specific, professionally justified comments the plans, technical documentation, functional descriptions or other project materials sent by the Contractor for approval within 5 working days from receipt. If this deadline passes without result, the documents shall be deemed approved.

6.6. The plans, functional descriptions and technical documents approved by the Customer form the basis of further performance. Any modification requested after approval qualifies as a change request and may be performed as additional work or extra work for separate remuneration.

6.7. The Contractor shall not be liable for any defect, discrepancy, additional cost or change of deadline arising from an error, deficiency, delayed commenting or subsequent modification of the documentation approved by the Customer.

7. SOFTWARE, PLC, HMI AND SCADA PROGRAMS AND SOURCE CODE

7.1. PLC, HMI, SCADA, gateway, data collection, interface, database, report generation, visualization, communication or other software, programs, configurations and developments created by the Contractor constitute the intellectual property of the Contractor, unless the Parties expressly agree otherwise in writing.

7.2. The Customer acquires - after payment of the full contractor's fee - a non-exclusive, non-transferable, unlimited-in-time right of use to the software, programs and configurations created by the Contractor, exclusively in connection with the given project, equipment, technology or site.

7.3. The right of use does not extend to the use, sale, copying, reverse engineering, further development or modification of the software, program, project file, configuration or documentation in another project, at another site, on other equipment, for another Customer or for a third party, unless the Contractor has given its prior written consent.

7.4. The Contractor is not obliged to hand over source code, developer project files, programming libraries, function blocks, internal developer documentation, version control files, configuration logic, know-how or other editable software files, unless the Parties have expressly agreed on this in writing and for separate remuneration.

7.5. If the Parties separately agree on the handover of source code or developer files, the remuneration, scope, handover format, documentation level, scope of use, transferability, modifiability and further liability of the Contractor shall be subject to a separate written agreement.

7.6. The Contractor assumes liability only for the operation of the approved and documented software version handed over by it. In the event of modification, reloading, parameterization, firmware update, hardware replacement, unauthorized intervention, unauthorized copying or undocumented change carried out by the Customer, end user or third party, the Contractor's warranty, guarantee and compensation liability ceases with respect to the affected software, equipment or function.

7.7. In the event of payment delay, the Contractor is entitled to suspend further software support, troubleshooting, modification, update, remote access, license extension, documentation supplementation and developer cooperation until the Customer has fulfilled all overdue payment obligations.

7.8. The Contractor shall not be liable for software or operational errors, data loss, production loss, operational disruption or security incident arising from an error, deficiency, unauthorized access, cyberattack, virus infection, inadequate backup or third-party intervention in the Customer's IT, OT, network, server, database, access management or operating environment.

8. CHANGE MANAGEMENT, ADDITIONAL WORK AND EXTRA WORK

8.1. Any modification arising in relation to the approved technical scope, plans, functional description, quantity, material selection, manufacturing design, software operation, interfaces, on-site conditions or documentation requirements shall qualify as a change request.

8.2. The Customer is obliged to communicate the change request to the Contractor in writing. The Contractor is entitled to examine the technical, financial and deadline-related effects of the change request and issue a separate offer for it.

8.3. The Contractor is not obliged to begin implementation of the change request until the Customer has accepted the amended technical scope, remuneration and deadline in writing.

8.4. If, according to the Contractor's estimate, the modification requested by the Customer increases the time, material, parts, software development, documentation, assembly, commissioning or project management effort by more than 5% compared to the original technical scope, the modification may be performed only on the basis of a separate written additional work order.

8.5. Additional work and extra work shall be settled - unless otherwise agreed in writing - on the basis of the Contractor's then-current hourly rates, daily rates, material prices, travel fees, engineering fees, programming fees and other cost items.

8.6. Additional work or extra work automatically extends the performance deadline by at least the time required to perform, procure, test, document and approve the given work.

8.7. The Contractor's employees, installers, programmers, engineers or subcontractors present on site are not authorized to amend the technical scope, remuneration or deadline of the Contract. Oral instructions given on site are not suitable for amending the Contract, and their implementation may begin only on the basis of an order confirmed in writing by the Contractor's company-signing or authorized representative.

8.8. If the Customer gives instructions to the Contractor's employee or subcontractor without the Contractor's prior written approval, the Contractor shall not be liable for the technical, financial, occupational safety, quality or deadline-related consequences arising therefrom.

9. CONDITIONS OF ON-SITE WORK

9.1. In the case of on-site implementation, assembly, commissioning, troubleshooting, maintenance or support, the Customer is obliged to provide the Contractor with the work area necessary for the work, which must be safe, lawful, obstacle-free and prepared.

9.2. The Customer is obliged to provide access to the work area, technological area, machine, room, electrical distribution board, control cabinet, server or other affected system; the necessary entry permits, trainings, escort and operator approvals; adequate lighting, work area, traffic route and safe working environment; 230/400 V electrical connection and basic utility conditions required for the work; the necessary shutdowns, technological windows, machine releases and trial operation opportunities; and the mechanical, technological, electrical, IT and operational information necessary for the work.

9.3. The Customer is obliged to provide the Contractor with a lockable, dry, clean room or separated storage area suitable from an asset protection point of view for the storage of the Contractor's tools, instruments, laptops, measuring devices, materials, parts and semi-finished products.

9.4. Only the Contractor and the persons designated by it may have access to the room or storage area referred to in Clause 9.3. If the Customer does not provide such room or storage area, the Contractor is entitled to refuse or suspend the work, and to pass on to the Customer its additional costs arising from storage, guarding, transport or repeated travel.

9.5. The Contractor shall not be liable for damages arising from deficiencies in the room, storage area, work area or entry system provided by the Customer, insufficient lockability, unauthorized access, theft, vandalism, water ingress, contamination, fire, dust, humidity or other on-site circumstance.

9.6. If the Contractor's employees or subcontractors appear on site, but the work cannot begin, is interrupted or can be performed only to a limited extent due to a reason arising within the Customer's sphere of interest, the Contractor is entitled to charge travel fees, waiting fees, downtime, travel costs, accommodation costs, daily allowances and other verified costs.

9.7. The Contractor is entitled to refuse or suspend the work with immediate effect if the work area is unsafe, the required permits or trainings are missing, the Customer fails to provide the necessary shutdown or access, or if the work poses a personal, property, occupational safety, fire safety, machine safety or legal risk.

10. DATA PROVISION AND COOPERATION BY THE CUSTOMER

10.1. The Customer is obliged to hand over to the Contractor in due time, completely and truthfully all data, documents, drawings, plans, technological descriptions, machine manuals, machine safety documents, electrical documentation, network information, I/O lists, functional descriptions, operating instructions, on-site conditions and other information necessary for the Contractor's performance.

10.2. The Contractor presumes the correctness, completeness and up-to-dateness of the data, documents and information handed over by the Customer. The Contractor is not obliged to perform a full review, re-measurement, validation or comparison with third-party systems of the data handed over by the Customer, unless this is expressly included in the offer or the Contract.

10.3. All additional costs, deadline extensions, additional work, extra work, redesign, reprogramming, repeated travel or repeated testing arising from an error, deficiency, delayed handover, inaccuracy, outdated nature or subsequent modification of data, documents or information provided by the Customer shall be borne by the Customer.

10.4. If the Customer fails to provide in due time any decision, approval, data, access, sample, technical information or on-site condition necessary for the Contractor's performance, the Contractor's performance deadline shall automatically be extended by at least the duration of the impediment and by the time required for restart and reorganization.

11. DELIVERY, ACCEPTANCE, STORAGE AND WAREHOUSING FEE

11.1. The Contractor shall notify the Customer in writing when the equipment, control cabinet, part, material, documentation or other performance item is ready. The notification may include the proposed date of acceptance, delivery, FAT, SAT or installation.

11.2. If the Customer fails to take over the equipment, control cabinet, part, material or other performance item reported as ready within 30 calendar days from the Contractor's written notification, or if its delivery, installation or on-site acceptance is not possible due to a reason arising within the Customer's sphere of interest, the Contractor is entitled to charge a warehousing fee.

11.3. Unless otherwise agreed in writing, the amount of the warehousing fee is net EUR 10/day/m², but at least a minimum of net EUR 10/day, or, in the case of equipment of high value or requiring special storage, 3% of the contractual net fee per month.

11.4. After the unsuccessful expiry of the 30-calendar-day acceptance deadline, storage shall take place at the Customer's cost and risk. From this time, the risk of damage passes to the Customer, including in particular the risk of accidental damage, theft, vandalism, fire, water ingress, humidity, corrosion, damage caused by rodents, obsolescence of parts or consumption of the manufacturer's warranty period.

11.5. The Contractor is entitled to store the product reported as ready but not taken over at its own premises, in a rented warehouse or in a warehouse operated by a third party. All related costs, including the costs of packaging, moving, loading, insurance, guarding, repeated transport and administration, shall be borne by the Customer.

11.6. The Customer's delay in acceptance does not affect the Contractor's right to invoice. If the Contractor has reported the contractual item as ready, but its handover, delivery, installation or acceptance is delayed due to a reason arising within the Customer's sphere of interest, the Contractor is entitled to invoice the fee of the affected partial performance.

12. FAT, SAT, PUTTING INTO USE AND PARTIAL ACCEPTANCE

12.1. The purpose of the factory acceptance test, site acceptance test, trial operation, functional test or other inspection performed by the Contractor is to determine whether the Contractor's performance complies with the accepted technical scope and functional description.

12.2. Factory Acceptance Test (FAT): takes place at the Contractor's premises, workshop or other designated location. If the Customer does not appear within 5 working days despite prior notification, or does not confirm the indicated date, the Contractor is entitled to perform and record the tests unilaterally. The record thus prepared may serve as the basis for performance certification.

12.3. Site Acceptance Test (SAT): final performance certification takes place at the installation or commissioning site on the basis of the approved functional description and technical scope. After successful closing of the SAT, the Customer is obliged to issue the performance certificate within 3 working days at the latest.

12.4. The Customer may not refuse acceptance due to a minor defect, deficiency, documentation discrepancy or aesthetic objection that does not prevent intended and safe use. Such defects shall be recorded by the Parties in a defect list, and the Contractor shall correct them within a reasonable deadline.

12.5. If the Contractor has manufactured, developed or prepared the contractual item for performance, but the start of delivery, on-site installation, SAT or handover and acceptance is delayed by more than 15 calendar days due to a reason arising within the Customer's sphere of interest, the Contractor is entitled to issue a technical ready-for-completion notice. On the 5th day after receipt of the ready-for-completion notice, the performance shall be deemed to have been contractually completed by the Contractor and accepted by the Customer.

12.6. In the case of presumed handover and acceptance under Clause 12.5, the Contractor is entitled to invoice the affected contractual fee, the risk of damage passes to the Customer, and the warranty period begins.

12.7. The Contractor's performance shall be deemed accepted if the Customer puts the equipment, software, documentation, plan or other result product into use without signing the performance certificate, operates it in live operation, applies it in a manufacturing or technological process, transfers it, makes it accessible to a third party, uses it for implementation, incorporates it into tender material or submits it in an authority/operator procedure.

12.8. Design, preparation of documentation, software development, control cabinet manufacturing, on-site assembly, commissioning, training and support may qualify as independently assessable partial performances. The Contractor is entitled to invoice the fee of the individual partial performances even if another part of the project is delayed or not realized due to a reason arising within the Customer's sphere of interest.

13. PARTS, SUPPLIERS AND MANUFACTURER CHANGES

13.1. The Contractor shall not be liable for any circumstance arising in the manufacturer, supplier, distributor or logistics chain that it could not avert or foresee with due care, including in particular stock shortages, product phase-out, manufacturer delivery delays, parts shortages, chip shortages, firmware or hardware version changes, manufacturer recalls, import restrictions, export restrictions, sanctions, customs procedure delays or errors in manufacturer documentation.

13.2. If, after the conclusion of the contract, any planned part, device, controller, module, sensor, drive, power supply, switch, circuit breaker, industrial communication device or other component cannot be procured, or can be procured only with disproportionate delay or at a significantly higher price, the Contractor is entitled to propose a technically equivalent substitute product or a substitute product serving a similar purpose.

13.3. In the case of using a substitute product, the resulting design, documentation, programming, testing, procurement or deadline-related consequences may be settled as additional work or extra work, provided that the reason for the change did not arise within the Contractor's sphere of interest.

13.4. The Contractor shall not be liable for hidden defects, design defects, firmware defects, compatibility problems or manufacturer warranty restrictions of a third-party manufacturer's product. In such a case, the Contractor may - for separate remuneration or according to an individual agreement - assist in enforcing the manufacturer's warranty.

14. THIRD-PARTY SYSTEMS AND EXISTING EQUIPMENT

14.1. The Contractor shall not be liable for defects, deficiencies, incompatibility or improper operation of any machine, technological equipment, electrical system, sensor, actuator, drive, pneumatic or hydraulic element, server, database, network infrastructure, remote access system, operating system, software, license, documentation or other system provided by the Customer, end user or third party.

14.2. If the Contractor's performance is connected to an existing system or a system supplied by a third party, the Customer is obliged to provide the documentation, access, operability, necessary licenses, administrator rights, communication parameters and necessary cooperation of the third party in relation to the affected system.

14.3. Any delay, additional cost, redesign, repeated travel or troubleshooting arising from an error, unavailability, lack of documentation, access restriction, license problem, communication error or inadequate technical condition of a third-party system shall be borne by the Customer.

14.4. If the Contractor investigates a defect in a system created or operated by a third party, such troubleshooting shall be subject to a fee even if the defect is ultimately not attributable to the Contractor's performance.

15. CE CONFORMITY, MACHINE SAFETY AND EU TECHNICAL COMPLIANCE

15.1. The Contractor assumes conformity obligations exclusively for the product, subassembly, control cabinet, electrical installation, software, documentation or service element expressly undertaken and delivered by it.

15.2. If the control cabinet, PLC program, HMI or SCADA system, electrical subassembly or automation solution supplied by the Contractor forms part of a larger machine, production line, technological system, building management system or industrial facility, responsibility for the CE conformity, machine safety risk assessment, declaration of conformity, machine manual, operating instructions and final commissioning permit of the complete machine, production line, technological system or facility shall lie with the Customer, the final machine manufacturer, system integrator or operator, unless the Contractor has expressly undertaken this in writing.

15.3. The Contractor's offer does not include a comprehensive machine safety audit, CE conformity procedure, risk assessment, validation, SIL/PL calculation, explosion safety examination, EMC examination, electrical protection inspection, lightning protection inspection, fire safety compliance examination or authority licensing of the complete machine, production line or technological system, unless these are expressly included in the offer or the Contract.

15.4. The Customer is obliged to notify the Contractor in advance in writing of all legal, standard-related, operator, industry, buyer, authority or internal company requirements with which the Contractor's performance must comply. Requirements communicated or amended after conclusion of the contract shall qualify as change requests.

15.5. The Contractor shall not be liable if the Customer or a third party installs, modifies, connects with another system, uses in an unsuitable environment or operates otherwise than intended the subassembly, software, control, documentation or electrical system supplied by the Contractor contrary to the approved technical scope.

15.6. If laws, standards, authority requirements or manufacturer instructions change after conclusion of the contract, the modifications, documentation, examinations and additional tasks necessary to comply with them may be settled as additional work or extra work.

16. PRICES, PAYMENT TERMS AND FINANCIAL SECURITIES

16.1. The Contractor's fee applies to the technical scope, quantities and conditions specified in the offer or the Individual Contract. Any subsequent or extra tasks differing from these shall be performed for separate remuneration.

16.2. If the procurement price of the main materials, parts, electrical components, controllers, switches, sensors, drives, cabinets, cables or other significant cost items to be installed demonstrably increases by more than 5% between conclusion of the contract and procurement, the Contractor is entitled to pass on to the Customer the price increase exceeding 5%.

16.3. In the event of the Customer's payment delay, the Contractor is entitled to default interest under the Hungarian Civil Code, the statutory flat-rate collection cost compensation, and reimbursement of collection, legal, attorney, administrative and other verified costs exceeding this amount.

16.4. The Customer is not entitled to unilaterally withhold, reduce or settle by set-off its due payment obligation by referring to a claim that the Contractor has not acknowledged in writing or that has not been established by a final court decision.

16.5. By referring to defective performance, warranty claims, defect list items or minor deficiencies, the Customer may withhold only an amount proportionate to the given defect and justified beyond dispute, provided that it substantiates the legal basis and amount of the withholding in writing and in detail.

16.6. In the event of payment delay exceeding 15 calendar days, the Contractor is entitled to suspend with immediate effect the work, performance of additional work, defect correction, support, remote access, handover of documentation, software updates and further travel. The deadlines shall be extended by the duration of the suspension and the time required for restart, and the Contractor shall not be liable for liquidated damages or compensation.

17. RETENTION OF TITLE AND USAGE RIGHTS

17.1. The Contractor retains ownership of the delivered physical devices, equipment, parts, control cabinets, materials and other products until the full purchase price, contractor's fee and all ancillary costs have been paid in full.

17.2. During the period of retention of title, the Customer may not alienate, encumber, provide as security or install the product in a manner that makes enforcement of the Contractor's ownership impossible, and is obliged to handle it separately, identifiably and with due care, insofar as this is reasonably possible having regard to the nature of the product.

17.3. The right to use software, programs, plans and documentation handed over by the Contractor transfers to the Customer only upon payment of the full fee. Until payment of the fee, the Customer has only a preliminary, revocable and limited possibility of use if the Contractor expressly permits this.

17.4. In the event of unauthorized use without payment or during payment delay, the Contractor is entitled to suspend or refuse further permission of use, support, modification, update, development, remote access and documentation supplementation within the limits permitted by law.

18. DELAY AND LIABILITY FOR LIQUIDATED DAMAGES

18.1. In the event of delay by the Contractor, liquidated damages for delay may be enforced only if the Individual Contract expressly includes this. Unless otherwise agreed, the rate of liquidated damages for delay is 0.5% per day, but its maximum amount may under no circumstances exceed 10% of the net partial amount affected by the delay, or at most 5% of the total net project value.

18.2. The liquidated damages for delay constitute the exclusive and full compensation for damages arising from the delay. The Customer excludes its claim for damages exceeding the liquidated damages in connection with the delay to the extent permitted by law.

18.3. The Contractor is released from the legal consequences of delay and liquidated damages if the reason for the delay is a circumstance arising within the Customer's sphere of interest, delay by a third party, disruption of the supplier chain, parts shortage, manufacturer delay, force majeure, delay in authority or operator permit, lack of on-site conditions, payment delay, approval delay or any other reason outside the Contractor's sphere of control.

18.4. The performance deadline shall automatically be extended by any period during which the Contractor cannot perform contractually due to a reason arising within the Customer's sphere of interest, a change request, payment delay or force majeure, and by the reasonable time required for restart.

19. WARRANTY, DEFECT HANDLING AND WARRANTY EXCLUSIONS

19.1. The Contractor assumes the warranty or statutory warranty obligation specified in the Contract, offer or law exclusively for the work performed, product delivered, software prepared or documentation created by it.

19.2. The warranty does not cover defects, damages or operational disruptions caused by improper use; modification, repair, dismantling, reprogramming or intervention by the Customer, end user or third party; inappropriate operating, environmental, electrical, temperature, humidity, dust, vibration, EMC or network conditions; overvoltage, lightning strike, power outage, grounding fault, network disturbance or inadequate power supply; mechanical damage, water ingress, contamination, corrosion, chemical effect, overload or external physical impact; omitted maintenance, cleaning, inspection or operation according to manufacturer instructions; defect of equipment, software, parts, system or infrastructure supplied by a third party; incorrect, incomplete or inaccurate data, plan, documentation or instruction handed over by the Customer; unauthorized software intervention, firmware update, parameter modification or program change; cyberattack, virus infection, unauthorized access or IT/OT security deficiency.

19.3. The Contractor is entitled to make the examination of a warranty claim subject to fee-based defect investigation if the cause of the defect cannot be clearly established on the basis of the report. If the investigation establishes that the defect is not attributable to the Contractor's performance, the Customer is obliged to reimburse the Contractor's travel, engineering, programming, investigation, administrative and other costs.

19.4. The report of a warranty defect must contain the precise description of the defect, the time when the defect was detected, identification of the affected equipment or software, the circumstances of the defect, available log files, photographs, screenshots, error messages and all information necessary for examining the defect.

19.5. After the occurrence of the defect, the Customer is obliged to take all reasonably expected measures to mitigate damage, and is obliged to refrain from any intervention that makes it impossible or difficult to determine the cause of the defect.

19.6. A warranty or statutory warranty claim does not entitle the Customer to withhold a due invoice, partial performance or other payment obligation, unless the Parties expressly agree otherwise in writing.

20. REMOTE ACCESS, IT/OT ENVIRONMENT AND CYBERSECURITY

20.1. If remote access is necessary for the Contractor's performance, troubleshooting, commissioning, support or maintenance, the Customer is obliged to provide it in a secure, operable manner and with appropriate rights.

20.2. The Customer is obliged to provide the necessary VPN, remote desktop, jump server, remote diagnostic, administrator, network, server, database or other accesses, as well as the necessary port openings, firewall rules and authorizations, insofar as these are necessary for the Contractor's performance.

20.3. The Contractor shall not be liable for any delay, additional cost or defect arising from the absence, restriction, delayed authorization, unstable operation, authorization problem, IT policy, firewall setting, antivirus software, network error or any deficiency of the Customer's IT/OT environment in relation to remote access.

20.4. The Customer is responsible for the proper design and operation of its own IT and OT systems, networks, servers, workstations, databases, user rights, backups and cybersecurity protection.

20.5. The Contractor shall not be liable for damages arising from a cyberattack, virus infection, unauthorized access, data loss, configuration error, backup deficiency, access management error or defect of a third-party IT service affecting the Customer's IT/OT system.

20.6. The Customer is obliged to ensure the preservation of the data, recipes, parameters, configurations, logs, program versions and backups of the live system, unless the Contractor has expressly undertaken the backup or archiving service in writing.

21. TRAINING, INSTRUCTION AND OPERATOR SUPPORT

21.1. The Contractor's offer includes only the training, instruction, trial operation or operator support occasions expressly indicated therein.

21.2. Additional training, repeated instruction, training of new operators, training records, examinations, preparation of training materials, foreign-language training or adaptation to the Customer's internal training system shall be provided for separate remuneration.

21.3. Training held by the Contractor does not exempt the Customer from providing the necessary occupational safety, machine safety, technological, internal regulatory and operating trainings to its own employees, operators, maintenance personnel and subcontractors.

21.4. The Contractor shall not be liable for damages arising from improper application of the knowledge provided during training, lack of qualification or fluctuation of the Customer's personnel, deficiencies in the Customer's internal training or operator error.

22. LANGUAGE, TRANSLATION AND FOREIGN-LANGUAGE DOCUMENTATION

22.1. The Contractor - unless otherwise agreed in writing - communicates in Hungarian and hands over Hungarian-language documentation.

22.2. Preparation of English, German or other foreign-language documentation, operating instructions, machine manuals, training materials, conformity documents, records, plans, functional descriptions, software interfaces or translations shall take place exclusively on the basis of a separate written agreement and for separate remuneration.

22.3. If the Customer requires foreign-language documentation or communication, it is obliged to indicate this in writing before conclusion of the contract. Any foreign-language documentation or translation request arising after conclusion of the contract qualifies as a change request.

22.4. If the Contractor prepares a non-certified translation, the translation is for information purposes only. In the event of a legal dispute or interpretational discrepancy, the Hungarian-language document shall prevail, unless the Parties expressly agree otherwise in writing.

23. PERFORMANCE ABROAD, ESPECIALLY WORK PERFORMED IN GERMANY

23.1. If the Contractor's performance requires work, transport, installation, commissioning, troubleshooting, support or training outside Hungary, the Customer is obliged to inform the Contractor in advance and in writing of all material conditions of the foreign performance.

23.2. In particular, the Customer is obliged to inform the Contractor of the entry, occupational safety, industrial safety, site, language, documentation, taxation, assignment, registration, labor law, insurance, authority and operator requirements related to foreign work.

23.3. The Contractor's offer covers only those foreign compliance, administrative and documentation obligations that are expressly included in the offer or the Individual Contract.

23.4. Additional costs related to foreign performance, including in particular travel, accommodation, daily allowance, local transport, parking, road tolls, entry permits, occupational safety training, local registration, foreign administration, insurance, translation, interpretation, foreign legal or tax advice, and costs of compliance with local requirements, shall be borne by the Customer, unless the offer expressly includes them.

23.5. In the case of work performed in Germany or at another foreign site, the Customer is obliged to ensure that the work area complies with the mandatory occupational safety, fire safety, industrial safety, electrical safety and entry regulations of the given country.

23.6. The Contractor is entitled to refuse or suspend foreign work if the necessary permits, information, occupational safety conditions, insurance or administrative conditions are not available, or if the work, in the Contractor's opinion, entails legal, occupational safety, tax, personal or property risk.

23.7. The Parties record that the Contract and these GTC are governed by Hungarian law. The choice of Hungarian law does not affect any mandatory local, foreign or European Union rules from which the Parties cannot validly derogate by agreement.

24. TRANSPORT, PACKAGING, LOADING AND INCOTERMS

24.1. Unless otherwise agreed in writing, the Contractor's fee does not include the costs of transport, special packaging, loading, crane work, lifting, insurance, customs clearance, export or import administration, foreign registration, road tolls, parking, local logistics and other forwarding costs.

24.2. If the Parties agree to apply an Incoterms parity, the given Incoterms rule, place and version must be expressly recorded in the offer or the Contract.

24.3. Delivery deadlines are for information purposes only, unless the Parties have expressly agreed on a fixed performance deadline. The Contractor shall not be liable for delivery delay if it occurs due to carrier, customs clearance, authority, supplier, weather, traffic, border crossing or Customer-related reasons.

24.4. The Customer is obliged to provide appropriate accessibility, loading area, lifting equipment, personnel, time window and a representative authorized to accept delivery at the place of transport and loading.

25. OCCUPATIONAL SAFETY, EHS AND HAZARDOUS WORK

25.1. Before the commencement of work, the Customer is obliged to hand over to the Contractor in writing all occupational safety, fire safety, EHS, asset protection, entry, industrial safety, hygiene, cleanroom, explosion safety or other special rules applicable to the work area.

25.2. If the work involves special risk, including in particular work at height, live work or work near voltage, work in confined spaces, work in explosive atmospheres, cleanroom work, work involving chemical exposure or work in a production environment, the Customer is obliged to inform the Contractor thereof in advance in writing.

25.3. The Contractor is entitled to make hazardous or special work subject to separate remuneration, supplementary conditions, additional personnel, special tools, occupational safety documentation or rescheduling of the work.

25.4. The Contractor is entitled to refuse or suspend the work if the work area does not comply with the conditions of safe work, or if the Customer does not ensure fulfillment of the necessary occupational safety, fire safety, industrial safety or other requirements.

26. AUTHORITY, OPERATOR AND THIRD-PARTY APPROVALS

26.1. Obtaining authority, operator, utility, fire safety, occupational safety, building operator, insurer, manufacturer, end-user or other third-party approvals, permits and consents is the Customer's obligation, unless the Contractor has expressly undertaken these in writing.

26.2. The Contractor shall not be liable for the delay, refusal or conditional granting of an authority, operator or third-party approval, unless this is directly and exclusively attributable to the Contractor's breach of contract.

26.3. If the authority, operator, end user or third party subsequently imposes a requirement that was not included in the accepted technical scope, the tasks necessary to fulfill it may be settled as additional work or extra work.

27. LIMITATION OF LIABILITY

27.1. The Contractor shall not be liable for indirect, consequential, incidental or business damages, including in particular production loss, factory shutdown, loss of profit, data loss, loss of business opportunity, liquidated damages, fines, end-user claims, third-party claims or damages incurred by the Customer's contractual partners.

27.2. The Contractor's total liability for damages - to the fullest extent permitted by law - shall not exceed 50% of the net contractual fee of the affected service element, but at most the limit amount available for the given damage event under the Contractor's valid liability insurance.

27.3. The limitation of liability shall not apply in cases where the limitation or exclusion of liability is expressly prohibited by law, in particular for intentionally caused damages and for damages affecting life, physical integrity or health.

27.4. The Customer is obliged to take all reasonably expected measures to prevent and mitigate damages. The Contractor shall not be liable for damages arising from the Customer's failure to fulfill its damage mitigation obligation.

28. FORCE MAJEURE

28.1. Force majeure means any unforeseeable, unavoidable circumstance outside the Parties' sphere of control that prevents, delays or makes the performance of the Contract economically, technically or legally disproportionately difficult.

28.2. Force majeure includes in particular: war, armed conflict, act of terrorism, sanction, export or import restriction, epidemic, border closure, authority measure, natural disaster, fire, flood, earthquake, extreme weather, strike, disruption of energy supply, transport obstacle, cyberattack, severe disruption of the supplier chain, parts shortage, chip shortage, manufacturer product phase-out, customs clearance delay or a circumstance caused by a third party that the affected Party could not avert even with due care.

28.3. In the event of force majeure, the affected Party is obliged to notify the other Party within a reasonable time and is obliged to take all measures reasonably expected of it to mitigate the effects of force majeure.

28.4. During the period of force majeure, the affected Party is released from the legal consequences of delay or non-performance to the extent that performance is prevented by the force majeure circumstance.

28.5. If the force majeure circumstance persists for more than 60 days, either Party is entitled to terminate in writing the part of the Contract not yet performed. Termination does not affect payment of the consideration for parts already performed.

29. CONFIDENTIALITY, BUSINESS SECRET AND REFERENCE

29.1. The Parties are obliged to treat confidentially all technical, economic, business, financial, contractual, technological, software, personal or other information that comes to their knowledge during the performance of the Contract in relation to the other Party's operation, business partners, prices, technology, plans, documentation or know-how.

29.2. The technical solutions, development methods, program structures, function blocks, software solutions, templates, documentation samples, pricing methods and project management procedures used by the Contractor constitute the Contractor's business secrets and know-how.

29.3. The Customer is not entitled to hand over, make accessible, reverse engineer, copy or reuse for its own purposes the Contractor's business secrets, know-how, source code, developer files or editable documents.

29.4. The Contractor is entitled to indicate the fact of the project, the Customer's name, the general nature of the performance and a non-confidential summary of the supplied solution as a reference, unless the Customer expressly prohibits this in advance in writing.

29.5. The Contractor's use of references may not extend to the Customer's business secrets, confidential technical data, internal technological processes or information whose disclosure would harm the Customer's legitimate business interest.

30. SUBCONTRACTORS AND CONTRIBUTORS

30.1. The Contractor is entitled to use subcontractors, experts, engineers, programmers, installers, suppliers, manufacturers, carriers or other contributors for the performance of the Contract.

30.2. The use of a subcontractor or contributor shall not qualify as assignment of the Contract and does not require the Customer's separate consent, unless the Parties have expressly agreed otherwise in writing.

30.3. The Customer is obliged to provide the Contractor's subcontractors and contributors with the same work area, access, occupational safety and information conditions as those provided to the Contractor's own employees.

31. TERMINATION OF CONTRACT, PROJECT SUSPENSION AND SETTLEMENT

31.1. If the Customer stops, suspends, postpones or makes performance of the project impossible, the Contractor is entitled to settle the works performed until then, ordered materials, reserved capacities, supplier obligations, design and project management efforts and verified costs.

31.2. In the event of project suspension or withdrawal by the Customer, the Contractor is entitled to invoice the fee of the work parts already performed; the consideration for materials, parts and equipment already ordered or procured; supplier cancellation fees and obligations; design, programming, project management and administrative efforts; manufacturing preparation and capacity reservation costs; as well as travel, transport, warehousing and other verified costs.

31.3. The Customer is not entitled to take over or use completed or partially completed plans, documentation, programs, control cabinets, materials or other result products without consideration.

31.4. Termination of the Contract does not affect the Contractor's rights related to intellectual property, fee payment, confidentiality, limitation of liability and consideration for parts already performed.

32. GOVERNING LAW, DISPUTES AND FINAL PROVISIONS

32.1. Matters not regulated in these GTC and the Individual Contract shall be governed by Hungarian law, in particular the provisions of the Civil Code.

32.2. The Parties shall primarily attempt to settle disputes arising from these GTC, the Individual Contract or their performance amicably, through consultation.

32.3. If consultation does not lead to a result, the Parties stipulate the exclusive jurisdiction of the Hungarian courts having competence according to the Contractor's registered office, insofar as permitted by law.

32.4. The stipulation of Hungarian law and Hungarian courts does not affect any mandatory local, foreign or European Union rules from which the Parties cannot validly derogate by agreement.

32.5. If any provision of these GTC is deemed invalid, ineffective or unenforceable, this shall not affect the validity of the remaining provisions. The Parties are obliged to replace the invalid provision with a valid provision that, in terms of its economic purpose and content, is as close as possible to the original provision.

33. PROVISIONS REQUIRING SEPARATE ACCEPTANCE

33.1. The Parties record that the Customer has read and accepted the provisions of these GTC, and in particular acknowledges those provisions that may differ from usual contractual practice or may materially affect the Customer's contractual rights or the Contractor's liability.

33.2. The Customer separately accepts in particular the following provisions: the handover of plans and documentation exclusively in PDF format; the exclusion of handover of native, editable and source files; the non-handover of source code, PLC, HMI, SCADA and other developer files; the rules on presumed acceptance of design approval and documentation approval; the separate remuneration of change requests, additional work and extra work; the provisions on warehousing fee and transfer of risk; the rules of acceptance by putting into use; the right of suspension due to payment delay; the possibility of suspending software support, modification, update and remote access; the provisions on limitation of liability and exclusion of indirect damages; the provisions on limitation of liquidated damages; the provisions on the additional costs and conditions of foreign performance; and the stipulation of Hungarian law and Hungarian courts.

33.3. The Customer declares that the Contractor has specifically drawn its attention to the above provisions, that the Customer has understood them and expressly accepts them.

The Customer declares that it became acquainted with the Contractor's General Terms and Conditions prior to the conclusion of the contract, accepts their provisions and acknowledges that the GTC form an inseparable part of the legal relationship established between the Parties.

The Customer also separately declares that it has read, understood and expressly accepts those provisions of the GTC that differ from usual contractual practice, that limit the Contractor's liability, or that regulate in detail the Customer's payment, acceptance, cooperation or approval obligations.

Dated: 27 May 2026.